

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**-----X
LUIS SANTANA,

Plaintiff

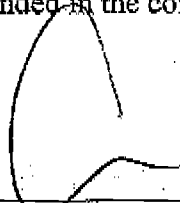
- against -

Index No. _____

Purchased _____

Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**THE CITY OF NEW YORK,
POLICE OFFICER IVAN LUCIANO (Shield #5398)
POLICE OFFICER ANDRES CALLE (Shield #18033)**Defendants.
-----X**SUMMONS****TO THE ABOVE NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 16, 2023
MARTINDALE & ASSOCIATES, PLLCBy: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

POLICE OFFICER IVAN LUCIANO (SHEILD #5398)
40th PRECINCT
257 Alexander Avenue
Bronx, NY 10454

POLICE OFFICER ANDRES CALLE (SHIELD #18033)
40th PRECINCT
257 Alexander Avenue
Bronx, NY 10454

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
LUIS SANTANA

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER IVAN LUCIANO (Shield #5398)
POLICE OFFICER ANDRES CALLE (Shield #18033)**

Defendants.
=====X

Plaintiff LUIS SANTANA, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers mentioned herein, including Police Officer Ivan Luciano (hereinafter "LUCIANO") AND Police Officer Andres Calle (hereinafter "CALLE") were, at the time of the occurrence, police officers of Defendant

CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Luis Santana (hereinafter "SANTANA") is a citizen of the United States and a resident of Los Angeles County in the State of California.

PROCEDURAL POSTURE

4. Within 90 days after the dismissal of the underlying criminal charges, which occurred on December 13, 2022, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. In the early evening of February 2, 2021, SANTANA was in the back passenger seat of a gray 2014 BMW with his friend Michael Cole and three other occupants, including the driver, Jonathan Alaba, driving in the confines of Bronx County.
10. SANTANA and the other occupants were headed to Michael Cole's house when they were stopped by an unmarked police vehicle containing four NYPD officers in the vicinity of 432 E 156th Street.
11. The four NYPD officers surrounded the vehicle and asked the driver Jonathan Alaba for his license and registration.
12. Jonathan Alaba provided his license and registration which were both valid.
13. After confirming the license was valid one of the NYPD officers asked SANTANA and the other occupants to exit the vehicle because they needed to search it, alleging there was a smell of "weed", despite no one smoking inside the vehicle.
14. All of the occupants complied with the directive and exited the vehicle.
15. SANTANA and the other occupants were handcuffed while they were searched on the street at the rear of the vehicle.
16. Simultaneously other NYPD officers arrived on the scene and started to search the BMW that SANTANA and the other occupants just exited.
17. After 15-20 minutes had elapsed and no contraband was found in the BMW or on SANTANA or the other occupants, the NYPD officers removed the handcuffs and allowed SANTANA and the other occupants to get back in the vehicle.
18. Just as they were about to be allowed to leave, one of the officers asked Jonathan Alaba to open the trunk.

19. Upon opening the trunk, LUCIANO and CALLE claimed to observe marijuana and a loaded 9mm handgun.
20. Despite SANTANA being a passenger in the vehicle, he was removed from the vehicle, re-handcuffed and arrested along with the other occupants of the vehicle.
21. SANTANA was placed in an NYPD vehicle which stood stationery for approximately 20 minutes.
22. After 20 minutes, SANTANA was taken to the 40th Precinct.
23. While at the 40th Precinct SANTANA was interrogated about his knowledge of any guns in the neighborhood or anyone who he knew to possess guns.
24. Not knowing anything about guns or anyone who was in the possession of them, SANTANA exercised his 5th Amendment right and refused to answer any questions.
25. The next morning SANTANA was moved to central booking in Bronx County.
26. SANTANA sat in central booking for roughly 12 hours and finally was arraigned before a judge at approximately 9:30pm.
27. Once before the judge, SANTANA was made aware he was being charged with two counts of felony possession of a weapon and one misdemeanor possession of marijuana.
28. SANTANA professed his innocence throughout the pendency of the criminal case, appearing approximately fifteen to twenty times before the case was finally dismissed on December 13, 2022.
29. Unfortunately, early on in the criminal case, SANTANA relocated to California, forcing him to fly back and forth to New York for his court appearances.

30. In total, SANTANA ended up paying approximately \$8,000.00 in travel expenses.

FIRST CAUSE OF ACTION: FALSE ARREST

31. Paragraphs 8-30 are incorporated by reference as fully set forth herein

32. LUCIANO arrested intentionally, and SANTANA at all times was aware he was being arrested and did not consent to being arrested.

33. As a result of being arrested by LUCIANO and the NYPD officers, SANTANA suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. The officers who arrested SANTANA, as described in paragraphs 8-30, intended to confine him. SANTANA was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

36. Paragraphs 1-35 are incorporated by reference as though fully set forth herein.

37. In arresting SANTANA as described in paragraphs 8-30, the arresting NYPD officers, including LUCIANO and CALLE were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

38. In arresting SANTANA as described in paragraphs 8-30, the arresting NYPD officers sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
39. As a result of defendants' abuse of process, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety and financial loss.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

40. Paragraphs 1-39 are incorporated by reference as though fully set forth herein.
41. In arresting SANTANA as described in paragraphs 8-30, the arresting NYPD officers, including LUCIANO and CALLE, acted with malice and without probable cause.
42. As a result of being maliciously prosecuted by the arresting NYPD officers, including LUCIANO and CALLE, SANTANA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety and financial loss.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.
44. Upon information and belief, the officers who illegally arrested SANTANA were at all times relevant duly appointed and acting officers of the City of New York Police Department.

45. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
46. Plaintiff is and at all times relevant herein a citizen of the United States and resident of Los Angeles County in the State of California. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
47. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
48. On or about February 2, 2021, as described in paragraphs 8-30, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched and seized, Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
49. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:
- (a) Freedom from illegal search and seizure
 - (b) Freedom from false arrest,
 - (c) Freedom from malicious prosecution,

50. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
51. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

52. Paragraphs 1-51 are incorporated by reference as though fully set forth herein.
53. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
54. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

55. Paragraphs 1-54 are incorporated by reference as though fully set forth herein.
56. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such

as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

57. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

58. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

(a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

59. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

EIGHTH CAUSE OF ACTION: NEGLIGENCE HIRING

60. Paragraphs 1-59 are incorporated by reference as though fully set forth herein.

61. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent

employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff LUIS SANTANA demands judgment against the Defendant in the sum of \$5,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

June 16, 2023

Yours, etc,

MARTINDALE & ASSOCIATES, PLLC

By: **Conway C. Martindale II**
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury: _____

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

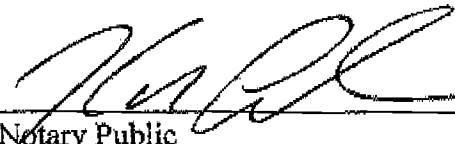
The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 16, 2023

DocuSigned by:

F05B841D5E5424BB
LUIS SANTANA

Subscribed and sworn to before me, this 13th day of June 2023



Notary Public

KAWAN A. LOVELACE
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02L06417580
Qualified in Queens County
Commission Expires May 17, 2025

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

LUIS SANTANA,

Plaintiff,

-against-

**THE CITY OF NEW YORK
POLICE OFFICER IVAN LUCIANO (Shield #5398)
POLICE OFFICER ANDRES CALLE (Shield #18033)**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
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295 Madison Avenue, 12th Floor
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

**100 Church Street
New York, New York 10007**

**POLICE OFFICER IVAN LUCIANO (SHEILD #5398)
40th PRECINCT
257 Alexander Avenue
Bronx, NY 10454**

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